IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT- IV)

C.A.(CAA)-63/ND/2022

Sections 230 – 232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016

IN THE MATTER OF SCHEME OF AMALGAMATION:

OF

ASHKIT POWER AND INFRASTRUCTURE PRIVATE LIMITED

... Transferor Company-1/Applicant Company-1

AND

CORUS POWER LIMITED

... Transferor Company-2/Applicant Company-2

AND

ELLERY MINING PRIVATE LIMITED

... Transferor Company-3/Applicant Company-3

AND

INFC LIMITED

... Transferor Company-4/Applicant Company-4

AND

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ZAGREUS REAL ESTATE PRIVATE LIMITED

... Transferor Company-5/Applicant Company-5

WITH

THAUMAS INFRASTRUCTURE LIMITED

... Transferee Company / Applicant Company-6

CORAM:

SH. DHARMINDER SINGH, HON'BLE MEMBER, (J)

MS. SUMITA PURKAYASTHA, HON'BLE MEMBER, (T)

Order Pronounced on 20.06.2022

ORDER

PER: SH. DHARMINDER SINGH, HON'BLE MEMBER, (JUDICIAL)

Under consideration is the Joint Application No. C.A.(CAA)129/ND/2021 filed under Sections 230 to 232 of the Companies Act, 2013 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the composite Scheme of Arrangement(hereinafter referred to as the "Scheme")proposed by the Applicant Companies. The prayer made seeking dispensation/directions with respect to the meetings of shareholders and creditors of the respective Applicant Companies to consider the proposed Scheme.

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1. M/s. Ashkit Power and Infrastructure Limited (hereinafter referred as the **"Transferor Company-1/Applicant Company-1"**) having CIN: U45200DL2008PLC172644 is a company incorporated under the erstwhile Companies Act, 1956. The registered office of the Applicant Company-1 is situated at House No. 854-A, 3rd floor, Block E1 Gali No.51, Molarband Extn. Badarpur New Delhi South Delhi – 110044.

2. M/s. Corus Power Limited (hereinafter referred as the **"Transferor Company-2/Applicant Company-2")** having CIN: U45204DL2008PLC177125 is a company incorporated under the erstwhile Companies Act, 1956. The registered office of the Applicant Company-2 is situated at House No. 854-A, 3rd floor, Block E1 Gali No.51, Molarband Extn. Badarpur New Delhi South Delhi – 110044.

3. M/s. Ellery Mining Private Limited (hereinafter referred as the **"Applicant Company-3/Transferor Company-3"**) having CIN: U U14200DL2011PTC213250 is a private limited company incorporated under the erstwhile Companies Act, 1956. The registered office of the Applicant Company-3 is situated at 854-A Gali No. 51 Block E, Molarband Ext. Badarpur, South Delhi, Delhi -110044.

4. M/s. IINFC Limited (hereinafter referred as the "**Transferor Company-4/ Applicant Company-4**") having CIN: U70101DL2010PLC201535 is a

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company incorporated under the Companies Act, 1956. The registered office of the Applicant Company-4 is situated at 854-A Gali No. 51 Block E, Molarband Ext. Badarpur, South Delhi, Delhi -110044.

5. M/s. Zagreus Real Estate Private Limited (hereinafter referred as the **"Transferor Company-5/Applicant Company-5")** having CIN: U70101dl2011PTC214821 is a private limited company incorporated under the erstwhile Companies Act, 1956. The registered office of the ApplicantCompany-5 is situated at House No.854-A, 3rd Floor, Block E1 Gali No.51, Molarband Extn. Badarpur, South Delhi, New Delhi- 110044.

6. M/s. Thaumas Infrastructure Private Limited (hereinafter referred as the **"Transferee Company/Applicant Company-6")** having CIN: U70101DL2011PLC214732 is a private limited company incorporated under the Companies Act, 2013. The registered office of the ApplicantCompany-6 is situated at House No.854-A, 3rd Floor, Block E1 Gali No.51, Molarband Extn. Badarpur, South Delhi, New Delhi- 110044.

7. It is submitted by the Applicant Companies that the registered office of all the Applicant Companies is under the domain of Registrar of Companies, Delhi and therefore, within the territorial jurisdiction of this Tribunal.

8. It is submitted by the Applicant Companies that the Board of Directors of all the Applicant Companies have unanimously approved the proposed Scheme

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of Amalgamation in their respective board meetings held on 17.12.2021.The appointed date as specified in the scheme means 1st day of April, 2021. Copies of the respective board resolutions dated 17.12.2021 passed in the respective board meetings of the applicant companies and copy of scheme of amalgamation have been placed on record.

9. It is submitted by the Applicant Companies that the following objectives are sought to be achieved inter-alia by way of the proposed amalgamation of the transferor companies with the transferee company:

i. Achieving business and administrative synergies;

ii. Cost savings due to reduction in overhead and other expenses, consolidation and simplification of business processes

iii. Improved organisational capability arising from pooling of financial resources and;

iv. Avoiding duplication of costs of administration, distribution, selling and marketing and reduction in legal and regulatory compliances

10. The Applicant Companies have also placed on record the Certificate issued by the respective statutory auditors of the applicant companies declaring that the Accounting Standards of the respective applicant companies are in conformity with the provision of Section 133 of the Companies Act 2013.

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11. That the Applicant Companies have filed their respective Memorandum of Association (MoAs) and Articles of Association (AoAs)interalia delineating their object clause. The Applicant Companies have filed their latest Audited Financial Statements for the financial year ended31.03.2021.

12. The position regarding the applicant company wise no. of Shareholders and Creditors and their Consent through Affidavits is summarised overleaf:

Companies	No. of equity share holders	Consent given	No. of secured creditors	Consent given	No. of Unsecured creditors	Consent given
Transferor company No.-1/ Applicant Company No. 1	7	100%	NIL	NA	NIL	NA
Transferor company No.-2/ Applicant Company No. 2	7	100%	NIL	NA	NIL	NA
Transferor company No.-3/ Applicant Company No. 3	2	100%	NIL	NA	NIL	NA
Transferor company No.-4/	7	100%	NIL	NA	06	(5 in number) (99.99% in

Applicant Company No. 4						value)
Transferor company No.-5/ Applicant Company No. 5	2	100%	NIL	NA	NIL	NA
Transferee company/ Applicant Company No. 6	7	100%	NIL	NA	7	(02 in number) (99.95% in value)

13. With respect to the Applicant Company-1, Applicant Company-1 submit that:

i. There are 07 (Seven) Equity Shareholders in the Applicant Company-1, and all the Equity Shareholders of the Applicant Company-1 i.e. 100% equity shareholders have given their written no objection to the proposed scheme by way of consent affidavit which are annexed to the captioned joint Company Scheme Application.

ii. There are Nil Secured Creditor and Nil Unsecured Creditor in the Applicant Company-1 as per the certificate from the Chartered Accountant certifying the list of Secured Creditor and Unsecured Creditor respectively.

iii. It would be convenient and expeditious that in view of the consent affidavits received from the equity shareholders, holding of the meeting of the equity shareholders may be dispended with. Since the

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Applicant Company-1 has nil secured creditor and nil unsecured creditor, the requirement of convening and holding the meeting of secured creditor and unsecured creditor does not arise.

14. With respect to the Applicant Company-2, Applicant Company-2 submit that:

i. There are 07 (Seven) Equity Shareholders in the Applicant Company-2, and all the Equity Shareholders of the Applicant Company-2 i.e. 100% equity shareholders have given their written no objection to the proposed scheme by way of consent affidavit which are annexed to the captioned joint Company Scheme Application.

ii. There are Nil Secured Creditor and Nil Unsecured Creditor in the Applicant Company-2 as per the certificate from the Chartered Accountant certifying the list of Secured Creditor and Unsecured Creditor respectively.

iii. It would be convenient and expeditious that in view of the consent affidavits received from the equity shareholders, holding of the meeting of the equity shareholders of the Applicant Company - 2 may be dispended with. Since the Applicant Company-2 has nil secured creditor and nil unsecured creditor, the requirement of convening and holding the meeting of secured creditor and unsecured creditor does not arise.

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15. **With respect to the Applicant Company-3, Applicant Company-3 submit that:**

i. There are 2 (Two) Equity Shareholders of the Applicant Company-3, and all the Equity Shareholders of the Applicant Company-3 i.e., 100% equity shareholders have given their consents by way of consent affidavit which are annexed to the captioned joint Company Scheme Application.

ii. There are Nil Secured Creditor and Nil Unsecured Creditor in the Applicant Company-3 as per the certificate from the Chartered Accountant certifying the list of Secured Creditor and Unsecured Creditor respectively.

iii. It would be convenient and expeditious that in view of the consent affidavits received from the equity shareholders, holding of the meeting of the equity shareholders of the Applicant Company - 3 may be dispended with. Since the Applicant Company-3 has nil secured creditor and nil unsecured creditor, the requirement of convening and holding the meeting of secured creditor and unsecured creditor does not arise.

16. **With respect to the Applicant Company-4, Applicant Company-4 submit that:**

i. There are 07 (Seven) Equity Shareholders in the Applicant Company-4, and all the Equity Shareholders of the Applicant Company-4 i.e., 100% equity shareholders have given their consents by way of

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consent affidavit which are annexed to the captioned joint Company Scheme Application.

ii. There are Nil Secured Creditor in the Applicant Company-4 as per the certificate from the Charted Accountant certifying the list of Secured Creditor which is annexed to the captioned joint Company Scheme Application.

iii. There are 06 (Six) Unsecured Creditors in the Applicant Company-4 having total outstanding amount of Rs.85,45,26,923/- as per the certificate from the Charted Accountant certifying the list of unsecured creditors of the Applicant Company-4 and out of the total unsecured creditors, 05 (five) unsecured creditors of the Applicant Company-4 holding aggregate outstanding amount of Rs. 85,45,03,293/- i.e., 99.99% in value have given their consent by way of consent affidavits which are annexed to the captioned joint Company Scheme Application.

iv. It would be convenient and expeditious that in view of the consent affidavits received from the equity shareholders and unsecured creditors of the Applicant Company-4, holding of the meeting of the equity shareholders and the unsecured creditors of the Applicant Company-4 may be dispended with. Since the Applicant Company-4 has no secured creditors, the requirement of convening and holding the meeting of secured creditor of the Applicant Company-4 does not arise.

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17. With respect to the Applicant Company-5, Applicant Company-5 submit that:

i. There are 02 (Two) Equity Shareholders in the Applicant Company-5, and all the equity shareholders of the Applicant Company-5 i.e., 100% equity shareholders have given their consents by way of consent affidavit which are annexed to the captioned joint Company Scheme Application.

ii. There are Nil Secured Creditor and Nil Unsecured Creditor in the Applicant Company-5 as per the certificate from the Chartered Accountant certifying the list of Secured Creditor and Unsecured Creditor respectively.

iii. It would be convenient and expeditious that in view of the consent affidavits received from the equity shareholders, holding of the meeting of the equity shareholders of the Applicant Company - 5 may be dispended with. Since the Applicant Company-5 has nil secured creditor and nil unsecured creditor, the requirement of convening and holding the meeting of secured creditor and unsecured creditor of the Applicant Company – 5 does not arise.

18. With respect to the Applicant Company-6, Applicant Company-6 submit that:

i. There are 07 (Seven) Equity Shareholders in the Applicant Company-6, and all the equity shareholders of the Applicant Company-6 i.e.,

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100% equity shareholders have given their written consent to the proposed scheme of amalgamation by way of consent affidavit which are annexed to the captioned joint Company Scheme Application.

ii. There are Nil Secured Creditor in the Applicant Company-6 as per the certificate from the Charted Accountant certifying the list of Secured Creditor which is annexed to the captioned joint Company Scheme Application.

iii. There are 07 (Seven) Unsecured Creditors in the Applicant Company-6 having total outstanding amount of Rs.30,19,73,848/- as per the certificate from the Charted Accountant certifying the list of unsecured creditors of the Applicant Company-6 and out of the total unsecured creditors, 02 (two) unsecured creditors of the Applicant Company-6 holding aggregate outstanding amount of Rs. 30,19,73,848/- i.e., 99.95% in value have given their written consent to the proposed scheme of amalgamation by way of consent affidavit which are annexed to the captioned joint Company Scheme Application.

iv. It would be convenient and expeditious that in view of the consent affidavits received from the equity shareholders and unsecured creditors of the Applicant Company-6, holding of the meeting of the equity shareholders and the unsecured creditors of the Applicant Company-6 may be dispended with. Since the Applicant Company-6 has no secured creditors, the requirement of convening and holding

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the meeting of secured creditor of the Applicant Company-6 does not arise.

19. Taking into consideration the submissions and the documents placed on record by the Applicant Companies, we propose to issue the following directions with respect to convening/holding or dispensing with the meetings of the Equity Shareholders, Secured Creditors and Unsecured Creditors of the respective Applicant Companies as well as issue of notices to the statutory authorities are as follow: -

A. <u>In relation to Applicant Company-1:</u>

a. With respect to the Equity Shareholders:

In view of the consent affidavits received from all the 07 (seven) equity shareholders of the Applicant Company-1, holding 100% voting shares, convening the meeting of the equity shareholders of the Applicant Company-1 is hereby dispensed with.

b. With respect to the Secured Creditors:

There are no secured creditors, hence the requirement of convening the meeting of the secured creditors of the Applicant Company-1 does not arise.

c. With respect to the Unsecured Creditors:

There are no unsecured creditors, hence the requirement of convening the meeting of the unsecured creditors of the Applicant Company-1 does not arise.

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B. In relation to Applicant Company-2:

a. With respect to the Equity Shareholders:

In view of the consent affidavits received from all the 07 (seven) equity shareholders of the Applicant Company-2, holding 100% voting shares, convening the meeting of the equity shareholders of the Applicant Company-2 is hereby dispensed with.

b. With respect to the Secured Creditors:

There are no secured creditors, hence the requirement of convening the meeting of the Secured Creditors of the Applicant Company-2 does not arise.

c. With respect to the Unsecured Creditors:

There are no unsecured creditors, hence the requirement of convening the meeting of the unsecured creditors of the Applicant Company-2 does not arise.

C. In relation to Applicant Company-3:

a. With respect to the Equity Shareholders:

In view of the consent affidavits received from all the 02 (two) equity shareholders of the Applicant Company-3, holding 100% voting shares, convening the meeting of the equity shareholders of the Applicant Company-3 is hereby dispensed with.

b. With respect to the Secured Creditors:

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There are no secured creditors, hence the requirement of convening the meeting of the secured creditors of the Applicant Company-3 does not arise.

c. With respect to the Unsecured Creditors:

There are no unsecured creditors, hence the requirement of convening the meeting of the unsecured creditors of the Applicant Company-3 does not arise.

D. <u>In relation to Applicant Company-4:</u>

a. With respect to the Equity Shareholders:

In view of the consent affidavits received from all the 07 (Seven) equity shareholders of the Applicant Company-4, holding 100% voting shares, convening the meeting of the equity shareholders of the Applicant Company-4 is hereby dispensed with.

b. With respect to the Secured Creditors:

There are no secured creditors, hence the requirement of convening the meeting of the secured creditors of the Applicant Company-4 does not arise.

c. With respect to the Unsecured Creditors:

In view of the consent Affidavits received from 05 (five) unsecured creditors of the Applicant Company-4 holding aggregate outstanding amount of Rs. 85,45,03,293/- i.e.,

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99.99% in value, convening the meeting of the unsecured creditors of the Applicant Company-4 is hereby dispensed with.

E. <u>In relation to Applicant Company-5:</u>

a. With respect to the Equity Shareholders:

In view of the consent affidavits received from all the 02 (two) equity shareholders of the Applicant Company-5, holding 100% voting shares, convening the meeting of the equity shareholders of the Applicant Company-5 is hereby dispensed with.

b. With respect to the Secured Creditors:

There are no secured creditors, hence the requirement of convening the meeting of the secured creditors of the Applicant Company-5 does not arise.

c. With respect to the Unsecured Creditors:

There are no unsecured creditors, hence the requirement of convening the meeting of the unsecured creditors of the Applicant Company-5 does not arise.

F. <u>In relation to Applicant Company-6:</u>

a. With respect to the Equity Shareholders:

In view of the consent affidavits received from all the 07 (seven) equity shareholders of the Applicant Company-6, holding 100% voting shares, convening the meeting of the equity shareholders of the Applicant Company-7 is hereby dispensed with.

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b. With respect to the Secured Creditors:

There are no secured creditors, hence the requirement of convening the meeting of the secured creditors of the Applicant Company-6 does not arise.

c. With respect to the Unsecured Creditors:

In view of the consent Affidavits received from 02 (two) unsecured creditors of the Applicant Company-6 holding aggregate outstanding amount of Rs. 30,19,73,848 /- i.e., 99.95% in value, convening the meeting of the unsecured creditors of the Applicant Company-6 is hereby dispensed with.

G. The Applicant Companies shall serve the notices along with copy of required documents and disclosures required under the provisions of the Companies Act,2013 upon: (i) the Central Government through the office of the Regional Director (Northern Region), Ministry of Corporate Affairs, Delhi (ii) the Registrar of Companies, NCT of Delhi and Haryana (iii) concerned income tax authorities within whose jurisdiction the respective Applicant Companies assessment are made (iv) any sectoral regulator who may have bearing on the operation of the Applicant Companies, pursuant to section 230(5) of the Companies Act, 2013 read with rule 8 of the Companies (Compromises, Arrangements and Amalgamations Rules) 2016. Further the Applicant Company-1, Applicant Company-2, Applicant Company-3 and Applicant Company-4,

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are directed to serve the notices along with copy of required documents and disclosures required under the provisions of the Companies Act,2013 and rules made there under upon the Official Liquidator, Lok Nayak Bhavan, 8th Floor, Khan Market, New Delhi-11001 pursuant to section 230(5) of the Companies Act, 2013 read with rule 8 of the Companies (Compromises, Arrangements and Amalgamations Rules), 2016.

20. All the aforesaid directions are to be complied with, strictly in accordance with the applicable law, including forms and formats contained in the Companies Act, 2013 as well as in Companies (Compromises, Arrangements and Amalgamations Rules), 2016.

21. The Captioned Application C.A (CAA)63/ND/2022 is allowed in aforesaid terms.

Let the copy of the order be served to the parties.

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(SUMITA PURKAYASTHA)
MEMBER (T)

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(DHARMINDER SINGH)
MEMBER (J)

Pronounced today under Rule 151 of the National Company Law Tribunal Rules, 2016 as the Hon'ble Member (Technical) Ms. Sumita Purkayastha) is not holding the court today.

Vishal Rana
20-06-2022

Court Officer